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Rights and responsibilities

Privacy

Privacy legislation



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Who has rights under the Privacy Act?

The *Privacy Act 1988* regulates the way individuals' personal information is handled.

As an individual, the Privacy Act gives you greater control over the way that your personal information is handled. The Privacy Act allows you to:

- know why your personal information is being collected, how it will be used and who it will be disclosed to
- have the option of not identifying yourself, or of using a pseudonym in certain circumstances
- ask for access to your personal information (including your health information)
- stop receiving unwanted direct marketing
- ask for your personal information that is incorrect to be corrected
- make a complaint about an organisation or agency the Privacy Act covers, if you think they've mishandled your personal information.

Who has responsibilities under the Privacy Act?

Australian Government agencies (and the Norfolk Island administration) and organisations with an annual turnover more than \$3 million have responsibilities under the Privacy Act, subject to some exceptions.

What is an organisation?

The Privacy Act defines an 'organisation' as:

- an individual, including a sole trader (though generally, the Privacy Act doesn't apply to an

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unless they're a small business operator, registered political party, state or territory authority or a prescribed instrumentality of a state.

What small businesses are covered?

The Privacy Act cover some small business operators (organisations with an annual turnover of \$3 million or less), including:

- a private sector health service provider — an organisation that provides a [health service](#) includes:
 - a traditional health service provider, such as a private hospital, a day surgery, a medical practitioner, a pharmacist and an [allied health professional](#)
 - a complementary therapist, such as a naturopath and a chiropractor
 - a gym or weight loss clinic
 - a child care centre, a private school and a private tertiary educational institution
- a business that sells or purchases personal information
- a [credit reporting body](#).
- a [contracted service provider](#) for a Australian Government contract
- an employee association registered or recognised under the [Fair Work \(Registered Organisations\) Act 2009](#) 
- a business that holds accreditation under the [Consumer Data Right System](#)
- a business that has [opted-in to the Privacy Act](#)
- a business that is related to a business that is covered by the Privacy Act
- a business prescribed by the [Privacy Regulation 2013](#) .

Which acts and practices are covered by the Privacy Act?

Particular acts and practices of some other small business operators are covered by the Privacy Act including:

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The Privacy Act also covers specified persons handling your:

- [consumer credit reporting information](#), including a credit reporting body, a credit provider (which includes energy and water utilities and telecommunication providers) and certain other third parties
- [tax file numbers](#) under the Tax File Number Guidelines
- personal information contained on the [Personal Property Securities Register](#)
- old conviction information under the [Commonwealth Spent Convictions Scheme](#)
- [My Health Record](#) information under the [My Health Records Act 2012](#) [↗] and [individual healthcare identifiers](#) under the [Healthcare Identifiers Act 2010](#) [↗].

Who doesn't have responsibilities under the Privacy Act?

The Privacy Act does not cover:

- state or territory government agencies, including a state and territory public hospital or health care facility (which is covered under [state and territory legislation](#)) except:
 - certain acts and practices related to My Health Records and individual healthcare identifiers
 - an entity prescribed by the Privacy Regulation 2013
- an individual acting in their own capacity, including your neighbours
- a university, other than a private university and the Australian National University
- a public school
- in some situations, the handling of [employee records](#) by an organisation in relation to current and former employment relationships
- a small business operator, unless an exception applies (see above)
- a media organisation acting in the course of journalism if the organisation is publicly committed to observing published privacy standards
- registered [political parties](#) and political representatives.

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